

		In this case, the indemnification provision in the Delivery Ticket was signed prior to the injury to Ms. Lear on June 5, 2024. Therefore, ECSS's claim for indemnification is not necessarily precluded by Section 3864 For all the foregoing reasons, the motion is DENIED as to the first cause of action. Second Cause of Action - Declaratory Relief Because the court finds there are triable issues of fact as to ECSS's claim for indemnification, it cannot grant summary judgment on the declaratory relief claim in favor of WDPS. Accordingly, the motion is DENIED as to the second cause of action. Clerk to give notice.
5	Martin vs. McGillivray 2022-01276636	Motion for Change of Venue (Transfer) Defendants Keri Lynn McGillivray and Jonathan McGillivray's motion to transfer venue and consolidate is DENIED. (See Code Civ. Proc., §§ 403, 404.1; Cal. Rules of Court, rule 3.500.) The McGillivray defendants seek an order transferring a related action pending in San Bernardino Superior Court, <i>Stanford, et al. v. Toyota Motor Corporation, et al.</i>, Case No. CIVSB2218524 (the Stanford action), to the Orange County Superior Court, and consolidating it with the instant action, <i>Martin v. McGillivray, et al.</i>, Orange County Superior Court, Case No. 30-2022-01276636 (the Martin action). The court on its own motion takes judicial notice of the case information for and filings in the Stanford action that are publicly available on the San Bernardino Superior Court's official website. (See Evid. Code, § 452, subds. (d), (h); San Bernardino Superior Court, Court Access Portal, https://sanbernardino.courts.ca.gov/divisions/civil/court-case-information-and-document-sales [using Case No. "CIVSB2218524," as accessed and viewed on 9/11/26].) The court on its own motion also takes judicial notice of the record and charging documents in Keri Lynn McGillivray's (hereinafter, Keri) related criminal cases arising from the same subject accident as the Martin and Stanford actions, specifically: (1) <i>People v. Keri</i>

	<i>Lynn McGillivray</i>, Orange County Superior Court, Case No. 22NF0116; and (2) <i>People v. Keri Lynn McGillivray</i>, Orange County Superior Court, Case No. 26NF3985. (See Evid. Code, § 452, subd. (d).) <u>The Martin action.</u> The Martin action was filed on 8/22/22, and has a trial date of 8/9/27. The parties to this action are plaintiff Nicol Martin and the McGillivrays. Martin alleges the McGillivrays negligently caused the subject traffic collision on the SR-241 on 8/23/20, causing Martin serious injuries. (Rabbani Decl. ¶¶ 6-7, 10, Ex. B [Martin complaint].) The parties have filed two stipulations to continue to trial in the Martin action, pursuant to which trial was continued twice. The first stipulation was filed on 9/8/25, and the second filed on 3/23/26. (ROA Nos. 53, 66.) These stipulations show that the parties have agreed to a stay of the civil proceedings in this action until the resolution of Keri’s related criminal case arising from the subject accident. The stipulations also state the parties have “tentatively resolved” this action “but the settlement funds cannot be allocated until after the related case concludes,” and that the parties therefore “stipulate to a [trial] continuance so that the related matters can resolve and enable this matter to finalize the settlement.” (ROA Nos. 53 [9/8/25 Stip. ¶¶ 2-4, 10], 66 [3/23/26 Stip. ¶¶ 3-7, 9].) <u>The Stanford action.</u> The Stanford action was filed on 8/23/22, and is currently set for trial on 11/2/26. (See Rabbani Decl. ¶¶ 6, 11, Ex. C; see also Bremont Decl. ¶ 4.) The Stanford action is brought by the Stanford family—i.e., the surviving husband and children of decedent Michelle Eleanor Malahoff Stanford (decedent)—for injuries they sustained in the same subject accident on 8/23/20, including the loss of decedent, who died at the scene. The Stanford complaint names as defendants various Toyota entities, OC Auto Exchange, Costco Wholesale Corporation, American Eagle Wheel Corporation, A.E.W., Inc., and the McGillivrays. It alleges causes of action for strict products liability and negligence against the entity defendants based on defects with the Stanford plaintiffs’ vehicle at the time of the accident (a Toyota Sequoia, which flipped over multiple times). It also alleges a claim for negligence against the McGillivrays for causing the collision and fleeing the scene. (See Rabbani Decl. ¶¶ 3, 6-7, 9, 11, Exs. A [traffic collision report], C [Stanford complaint].) The publicly available case information for the Stanford action confirms the trial date of 11/2/26, and shows that there are now
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	only three remaining defendants, OC Auto Exchange and the McGillivrays. (See San Bernardino Superior Court, Court Access Portal for Case No. CIVSB2218524 [active/inactive parties; dismissals under documents]; see also Bremont Decl. ¶ 5, Exs. A-B.) Importantly, it also shows the McGillivrays have filed a motion to stay the Stanford action pending resolution of Keri’s related criminal proceeding, which is presently scheduled for hearing on 10/2/26. (See San Bernardino Superior Court, Court Access Portal for Case No. CIVSB2218524 [7/1/26, 8/24/26, 8/28/26 filings under documents; hearings].) There is also a substantially similar motion to transfer venue and consolidate pending in that case filed by the McGillivrays, which is also scheduled for hearing on 10/2/26. (See <i>ibid.</i>; see also Ntc. of Mtn., p. 2.) <u>Keri McGillivray’s related criminal cases.</u> The People have filed two related criminal cases against Keri in Orange County Superior Court. The record from the first criminal case (Case No. 22NF0116) shows Keri was charged with four felonies based on the same subject accident at issue in the Martin and Stanford actions, specifically, vehicular manslaughter with gross negligence, fleeing the scene after committing vehicular manslaughter, hit and run resulting in permanent and serious injury, and reckless driving causing injury. The record also shows that trial was scheduled for 5/14/26, but that the People answered not ready (a witness did not/could not appear), and that the court dismissed the case as it did not find good cause to continue the trial. The People subsequently petitioned for writ relief with the Court of Appeal, but it was summarily denied on 7/9/26, and the case was closed on 7/11/26. (See <i>People v. Keri Lynn McGillivray</i>, Orange County Superior Court, Case No. 22NF0116 [minutes from 5/14/26, 5/15/26, 7/9/26, 7/11/26; 7/9/26 Order of Court of Appeal, Case No. G067082].) Subsequently, the People refiled the criminal matter against Keri on 7/29/26, in <i>People v. Keri Lynn McGillivray</i>, Orange County Superior Court, Case No. 26NF3985. The new, refiled criminal case asserts the same four prior felonies arising out of the same subject accident occurring on 8/23/20. (See <i>People v. Keri Lynn McGillivray</i>, Orange County Superior Court, Case No. 26NF3985 [7/29/26 criminal complaint].) The new criminal case remains pending and is still in its initial stages; the arraignment hearing is currently scheduled for 9/17/26.
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		<u>Procedural requirements.</u> Defendants have adequately demonstrated a good faith effort to obtain the agreement of all parties to the proposed transfer and consolidation, and notified all parties of the substantially similar motion to transfer and consolidate pending in the Stanford action. (See Cal. Rules of Court, rule 3.500(b), (c)(2)-(3).) <u>The civil actions are not “complex.”</u> Defendants have also shown the Martin and Stanford actions are not “complex” as defined by the Judicial Council. (See Code Civ. Proc., § 403; Cal. Rules of Court, rules 3.400, 3.500(c)(1).) As plaintiff Martin concedes, the Martin action “is a straightforward motor vehicle negligence” case between Martin and the McGillivrays. (Opp. at p. 2; see Rabbani Decl. at Ex. B [Martin complaint].) There is nothing “complex” about a straightforward personal injury action arising out of a traffic collision between a single plaintiff in one car and two individual defendants in another. (See Cal. Rules of Court, rule 3.400(a)-(c).) The Stanford action is also not complex. There are only three plaintiffs and three defendants remaining in that case. All three Stanford plaintiffs are aligned in interest and were injured in the same vehicle in the same subject accident. As alleged against the sole remaining entity defendant, the plaintiffs allege claims for products liability based on a single vehicle’s alleged defects. And as alleged against the McGillivrays, the plaintiffs’ negligence claim is not much different from Martin’s claims in this action. (See Rabbani Decl. at Ex. C [Stanford complaint].) None of the issues in that action are difficult or novel, and nothing suggests the case will require exceptional judicial management or substantial postjudgment supervision. (See Cal. Rules of Court, rule 3.400(a)-(c).) <u>Common question of fact or law and other substantive factors.</u> Defendants have shown that there is a common question of fact or law that is predominating and significant to the litigation: liability for the accident, i.e., whether Keri caused the collision(s) that injured Martin and the Stanfords. (See Rabbani Decl. ¶¶ 7-9, Exs. A-C.) Defendants have shown that this liability issue is common to both cases and shares the same percipient and investigative witnesses. (See <i>ibid.</i>) Defendants have not, however, addressed the remaining factors, including “the relative development of the actions” or the “likelihood of settlement of the actions without further litigation should [consolidation] be denied.” (Code Civ. Proc., § 401.1.) This
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is despite the fact that defendants have long since “tentatively resolved” the Martin action and have merely been awaiting the resolution of the related matters to finalize the settlement, strongly suggesting liability may no longer even be an issue in this action. (See ROA Nos. 53 [9/8/25 Stip. ¶¶ 3-4, 10], 66 [3/23/26 Stip. ¶¶ 3-7, 9].) This is also despite the fact that at the time defendants filed this motion, the Stanford action was set for trial on 9/28/26, meaning that the discovery cutoff in that action may have already passed, along with the ability to avoid any further purported “duplicative discovery” by consolidating the two matters.

Defendants have also failed to address the fact that on the very same day they filed this motion to transfer venue and consolidate, they also filed a motion to stay the Stanford action pending resolution of Keri’s related criminal proceedings. This is significant because if the San Bernardino Superior Court grants the stay, both cases will be stayed pending the outcome in the criminal matter (see ROA Nos. 53 [9/8/25 Stip. ¶ 2, Martin action stayed per agreement], 66 [3/23/26 Stip. ¶¶ 4-5]), which has the very real possibility of finally determining the liability issue against Keri in the civil actions by operation of law (collateral estoppel). (See, e.g., *Smith v. State Farm Mut. Auto. Ins. Co.* (1992) 5 Cal.App.4th 1104, 1115 [criminal conviction is given collateral estoppel effect, conclusively establishing the defendant’s liability for negligence in a civil action arising from the same incident between the parties].) This would answer the only common question of fact or law between the two civil actions, absolving any grounds for consolidation.

California Rules of Court, rule 3.500 requires that “if the court orders that the case or cases be transferred from another court, the order must specify the reasons supporting a finding that the transfer will promote the ends of justice, with reference to the [foregoing] standards....” (Cal. Rules of Court, rule 3.500(d); Code Civ. Proc., § 404.1.) The court cannot do this here because defendants have failed to provide and address all the information necessary for the court to properly consider and evaluate these factors, particularly in light of the long-pending tentative settlement of the Martin action and the pending motion for stay in the Stanford action that is currently scheduled for hearing on 10/2/26.

Accordingly, the motion is denied, without prejudice to a later motion to transfer and consolidate providing further information once the San Bernardino Superior Court has ruled on the motion for stay.

		Defendants shall give notice.
6	Pavement Recycling Systems, Inc. vs. State of California, Department of Transportation 2026-01562211	Demurrer to Complaint <i>Case dismissed. All hearings vacated.</i>
7	Serhal vs. Homesite Insurance Company of the Midwest 2026-01570046	Demurrer to Complaint <i>Hearing vacated pursuant to request.</i>
8	Sun vs. 1560 E. Warner Avenue Limited Partnership 2025-01516329	Demurrer to Amended Complaint Defendants 1560 E. Warner Avenue Limited Partnership; a California limited partnership and Andrew Pan, Julia Zhu, and John Ho's demurrer to the First Amended Complaint of Hai Sun is OVERRULED in part and SUSTAINED in part as follows: • OVERRULED as to the 1st cause of action for breach of written contract. • OVERRULED as to the 2nd cause of action for breach of implied covenant of good faith and fair dealing. • OVERRULED as to the 3rd cause of action for breach of fiduciary duty. • OVERRULED as to the 4th cause of action for accounting. • SUSTAINED as to the 6th cause of action for constructive fraud. The claim is not alleged with the required specificity. • SUSTAINED as to the 7th cause of action for declaratory relief. The requested relief is wholly derivative of other claims. Where the declaratory relief claim merely restates the same controversy as the other claims and would not independently resolve any dispute, it does not serve the